

Authority for Personal Data
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State Secretary of Finance - Taxation and Tax Administration
P.O. Box 20201
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Date

April 9, 2024

Our reference

z2024-004985

Your letter of

February 15, 2024

Your reference

Subject

Legislative assessment of the draft bill on the actual return from box 3 taxation

Dear Mr. Van Rij,

In your letter dated February 15, 2024, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation regarding the draft bill for the Amendment of the Income Tax Act 2001 for taxing the actual return from savings and investments (hereinafter: the draft).

The AP has no remarks on the draft.

This legislative assessment will be published on the AP's website within two weeks.

Yours sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman

Date

April 9, 2024

Our reference

z2024-004985

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- Annex

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Assessment Framework AP

The AP examines whether the draft concerning the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the GDPR (Regulation 2016/679), or the Police and Justice Directive (Directive 2016/680), the general legal principles of the EU, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

1. the draft being suitable to achieve the pursued objective of general interest or the protection of the rights and freedoms of others (suitability);
2. the objective cannot reasonably be achieved as effectively by other means that are less intrusive to the fundamental rights of the data subjects (subsidiarity);
3. the interference is not disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (proportionality);

4. the draft is sufficiently clear and precise regarding the scope and is predictable in its application (legal certainty);
5. the draft sufficiently indicates under what circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (substantive and procedural safeguards); and
6. the draft is binding under national law (bindingness under national law).

The AP pays particular attention to the rights of data subjects and the compliance of the draft with Article 6, paragraphs 1 and 3, and Article 9 of the GDPR (Regulation 2016/679), or Articles 8 and 10 of the Police and Justice Directive (Directive 2016/680), and with the principles established in Article 5 of the GDPR or Article 4 of the Directive. This implies, among other things, that:

- (a) processing must be lawful, fair, and transparent with respect to the data subject;
- (b) personal data may only be collected for specified, explicitly defined, and legitimate purposes; and
- (c) processing must be adequate, relevant, and limited to what is necessary for the purposes.

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